

22STCV35268 22STCV35268

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 22STCV35268 Hearing Date: August 26, 2026 Dept: 833

Ibiere N. Seck and Seck Law Case No. 22STCV35268

Hearing:

August 26, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 Brian T. Dunn, A Professional Judge: Joseph

Lipner

Law

Corporation

Order Granting

Motion for Leave to Amend

INTRODUCTION

Plaintiffs Ibiere N. Seck ("Seck") and Seck

Law (collectively, "Plaintiffs") move for leave to file a First Amended

Complaint ("FAC").

The Court GRANTS the motion for

leave to amend. Plaintiff shall file the FAC within ten days. The Court sets a

trial setting conference for October 14, 2026 at 9:30 a.m.

BACKGROUND

In

2018, Plaintiff Seck left her law firm, Dunn Law P.C. d/b/a the Cochran Firm (“Defendant” or the “Cochran Firm”). Upon leaving, she took with her a litigation referred to in the current lawsuit as the “Doe Matter.” Seck and the Cochran Firm had a dispute as to how to split fees from several cases that Seck took with her, including the Doe matter.

On

October 29, 2019, Seck and the Cochran Firm resolved their disputes as to the fees from the Doe matter and several other lawsuits by entering into a “Stipulation for Settlement” negotiated at a mediation (the “Fee Sharing Agreement”). Under the Fee Sharing Agreement, Seck and the Cochran Firm agreed that 93% of the fee from the Doe matter would go to Seck and 7% would go to the Cochran Firm.

Seck,

along with her law firm Seck Law P.C., filed this lawsuit to enforce the Fee Sharing Agreement as to the Doe matter. The Cochran Firm, along with Brian T. Dunn, a Professional Law Corporation, cross-complained for fraud and contended that the Fee Sharing Agreement was invalid because of Seck’s alleged fraud.

The

case proceeded to a jury trial on the Cochran Firm’s claim of fraud. The jury found in favor of Seck and against the Cochran Firm on the issue of fraud.

The

parties then presented a discrete legal question for determination by the Court, which in turn would determine whether the Court would enter judgment for breach of contract in favor of Seck and enforce the Fee Sharing Agreement. The specific question was as follows. The client, Karen Doe, did not consent in writing to the Fee Sharing Agreement. Does this render the Fee Sharing Contract unenforceable under California Rule of Professional Conduct 1.5.1?

On

March 25, 2026, the Court concluded that the fee sharing agreement was void and unenforceable in light of the parties’ failure to comply with Rule 1.5.1.

In

light of the fee sharing agreement being void, the Court identified the following questions that remain to be decided, including:

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How should the fee be split?

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Is the Cochran firm entitled to less than the 7% agreed to under the contract, or to more than that amount?

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Must the Cochran Firm return to Seck the monies she already paid under other provisions of the Fee Sharing Agreement?

This motion for leave to amend stems directly from the questions the Court identified as unresolved in its March 25, 2026 order.

LEGAL STANDARD

A complainant may obtain leave from the trial court to amend their pleading. The Court may, “in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars.” (Code of Civ. Proc., § 473, subd. (a)(1).) Additionally, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading...” (Code of Civ. Proc., § 576.)

“There is a strong policy in favor of liberal allowance of amendments.” (Mesler v. Bragg Mgmt. Co. (1985) 39 Cal.3d 290, 296.) If the granting of a timely motion for leave to amend “will not prejudice the opposing party, it is error to refuse permission to amend, and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action[,] it is not only error but an abuse of discretion.” (Morgan v. Super. Ct. (1959) 172 Cal.App.2d 527, 530 (finding that the trial court acted arbitrarily and abused its discretion when it denied a motion for leave to file an amended complaint that was filed before a trial date had been set).)

Any

motion for leave to amend a complaint must be accompanied by a supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324, subd. (b).)

Any motion for leave to

amend before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324, subd. (a).)

DISCUSSION

Plaintiffs

seek leave to amend to (1) expand the existing declaratory-relief cause of action to encompass the valuation of the Cochran Firm's claim to the disputed fees under its asserted lien and (2) add a companion cause of action in quantum meruit for the determination and satisfaction of that claim.

Plaintiffs have satisfied all of the requirements of the California Rules of Court necessary for the Court to grant leave to amend.

These causes of action are related to the same underlying dispute: how to divide attorney's fees from the Doe Matter and the Cochran Firm's entitlement, if any, to them. The Court finds that the addition of a quantum meruit cause of action is appropriate because the claim rests on the same operative facts as the other causes of action. (Sandvold v. Perrot (1946) 74 Cal.App.2d 344, 348-349 [a party may add a new claim "after submission of the cause unless the amendment introduces a new and independent cause of action"].)

There is also no prejudice from the new claims being added to the complaint. The extent and value of the work performed on the Doe

Matter during the Cochran Firm's tenure were explored in general at trial. To the extent that the Cochran Firm believes they must gather more evidence, they will be able to do that in discovery.

The

Cochran Firm argues that leave to amend should be denied because additional discovery will be necessary, resulting in increased costs and burdens on the parties. There are two problems with this argument. First, the opposition identifies no witness the Cochran Firm would need to depose or document it would need to obtain. Indeed, the Cochran Firm has already taken discovery about the work Seck did while she was still at the Cochran Firm. (Lowe Reply Decl., ¶¶ 3, 4, 6.)

Second,

the facts of this case differ from the facts of other cases where the Court has denied leave to amend on the grounds that it would increase costs or burdens on a party.

For

example, in *Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739, the party seeking leave to amend waited until four and a half years into litigation to assert a federal claim, doing so only after the court indicated its intent to grant summary judgment. The plaintiffs decided not to assert a federal claim in part to avoid federal question jurisdiction. (Ibid.)

There is no evidence here that the delay in raising a quantum meruit claim was a resolve of tactical manipulation. The Court's Minute Order of March 25, 2026 invited the parties to resolve the question of how the fee should be split since the fee sharing agreement was void. Plaintiffs chose to respond by arguing a quantum meruit claim. The Court finds no problem with that.

In

Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 486, the party seeking leave to amend sought amendment on the eve of trial and offered no excuse for the failure to file earlier. By contrast, here, there is a reason why this motion is being made now: the Court has concluded that the fee sharing agreement is void and the parties must now resolve the question of how the fee should be split since the agreement is void.

The

party seeking leave to amend in *Magpali* also stated that his claim would

depend on witnesses who had not been identified or deposed prior to the time of trial. (Id., at p. 487.) This was not problematic because it would require the parties to conduct more work. This was problematic because the party seeking leave to amend made the motion on the eve of trial. (Id., at p. 488.) The jury was about to be impaneled, and counsel, the parties, the trial court, and the witnesses had blocked the time. (Ibid.) Here, the Cochran Firm has stated they will need expert testimony to assess whether Seck worked a reasonable number of hours. But unlike Magpali, there is no upcoming deadline. There is no pending trial or other dispositive motion on the calendar. The parties can take as much time as they want to conduct the discovery on a quantum meruit cause of action.

The

Cochran Firm also raises concerns that the litigation of the Doe matter occurred principally in the years of 2017-2021, and reconstructing the entire litigation of the Doe matter would create issues with witness memory.

The Cochran Firm does not present any admissible evidence to indicate that this is a real problem. The Court expects all parties to have retained information (such as billing records) about the Doe matter as a result of the recent lawsuit and those billing records can be used to jog memories.

Finally,

the Cochran Firm argues that Seck cannot establish reasonable justification for not filing a quantum meruit claim at the outset of this litigation. The Court disagrees. The Complaint proceeded on a contract theory because a settlement already existed: the Parties had mediated their dispute, reduced the resolution to the Fee Sharing Agreement, and performed under it repeatedly without objection. Unlike most disputes between attorneys over fees, the question in this case was not how to allocate the fee in the first instance; rather, it was whether a settlement that had already allocated the fee was enforceable. The invalidity of the Fee Sharing Agreement under the Rules of Professional Conduct was not raised until recently, and so there was no reason to consider pleading a quantum meruit claim until this March.

Plaintiffs

have satisfied their burden to amend the Complaint. The parties can discuss whether additional discovery is necessary or whether the record as it currently stands is sufficient.

CONCLUSION

The Court GRANTS the motion for
leave to amend.

IT IS SO ORDERED.

Dated: August 26,
2026

Joseph
Lipner

Superior
Court Judge